

22NWCP00018 22NWCP00018

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#12

FOX CAPITAL GROUP, INC. v. CHURA SERVICES,
INC., et al.

CASE NO.: 22NWCP00018

HEARING: Thursday, September 10, 2026, at 9:30 AM

Non-Party BLUE WHITE CLEANERS & LAUNDERS, INC.'s "MOTION
TO VACATE OR MODIFY AFFIDAVIT OF IDENTITY AND ORDER, QUASH/RECALL/MODIFY WRITE
AND LEVY, ORDER RELEASE/RETURN OF FUNDS, AND AWARD FEES AND COSTS" is GRANTED.

The Affidavit of Identity and Order entered on September 16, 2022, is hereby
vacated as void. The Court orders all funds levied pursuant to that order
released. The Court grants the request for attorney's fees and costs, but the
moving party must file a properly noticed motion to seek those fees and costs.

Moving Party to give notice.

Background

On January 18, 2022, Plaintiff FOX CAPITAL GROUP, INC. ("Plaintiff")
commenced this action against three (3) defendants, CHURA SERVICES, INC.,
CRYSTALLINE ENTERPRISES INC., and SUN JOO KIM (collectively, "Original
Defendants"), by filing an application for entry of a New York judgment based
on California's Sister State Money Judgments Act (Code Civ. Proc., § 1710.10 et
seq.).

The same day, Plaintiff obtained a judgment of \$71,391.38 against the Original Defendants.

On September 16, 2022, Plaintiff filed an Affidavit of Identity, stating that the the Original Defendants were also known by the following names: "Blue White Cleaners & Launderers Inc., a California corporation dba Blue White Cleaners adba Blu White Cleaners fka Chura Services, Inc. dba Blue White Cleaners; Crystalline Enterprises, Inc. dba Crystalline Enterprises." (Affidavit of Identity, p. 1, Item 2.) The Court approved the affidavit and entered an order stating that those names may be added to any writ of execution or abstract of judgment.

Thereafter, Writs of Execution were issued against "Blue White Cleaners & Launderers Inc. a California corporation dba Blue Blue White Cleaners adba Blu White Cleaners fka Chura Services, Inc. dba Blue White Cleaners."

On June 16, 2026, BLUE WHITE CLEANERS & LAUNDERS INC. ("Blue White") filed the instant motion "for orders [1] vacating or modifying the September 16, 2022 Affidavit of Identity and Order as to Blue White; [2] quashing, recalling, or modifying the April 10, 2026 Writ of Execution and May 18, 2026 Notice of Levy as to Blue White and any Blue White account or property; [3] ordering release or return of any funds levied from Bank of America accounts ending in 6596, 5030, and 5701; [4] prohibiting future enforcement against Blue White based on the identity order; and [5] awarding attorney's fees and costs under Code of Civil Procedure section 699.510(e)." (Motion, pp. 1:27-2:6.)

On August 26, 2026, Plaintiff filed its opposition.

On September 2, 2026, Blue White filed its reply.

Legal Standard

Under California's Enforcement of Judgments Law (EJL) (Code Civ. Proc., §§ 680.101 to 724.260), a judgment creditor may seek an order adding a judgment debtor's additional names to a judgment.

To do so, the judgment creditor must file with the clerk of the court an "Affidavit of Identity." (Code Civ. Proc., § 680.135 ["'Affidavit of Identity' means an affidavit or declaration executed by a judgment creditor,

under penalty of perjury, that is filed with the clerk of the court in which the judgment is entered at the time the judgment creditor files for a writ of execution or an abstract of judgment”].)

The affidavit must “set forth the case name and number, the name of the judgment debtor stated in the judgment, the additional name or names by which the judgment debtor is known, and the facts upon which the judgment creditor has relied in obtaining the judgment debtor’s additional name or names.” (Code Civ. Proc., § 680.135.)

“If a person who is not the judgment debtor has property erroneously subject to an enforcement of judgment proceeding based upon an affidavit of identity, the person shall be entitled to the recovery of reasonable attorney’s fees and costs from the judgment creditor incurred in releasing the person’s property from a writ of execution, in addition to any other damages or penalties to which an aggrieved person may be entitled to by law, including Division 4 (commencing with Section 720.010).” (Code Civ. Proc., § 699.510, subd. (e).)

Discussion

Under Code of Civil Procedure section 473, subdivision (d) (“Section 473(d)”: “The court ...may, on motion of either party after notice to the other party, set aside any void judgment or order.”

Blue White moves to vacate Plaintiff’s Affidavit of Identity and Order pursuant to Section 473(d), arguing that the order was void because Blue White is a separate corporation from any of the judgment debtors.

In support of the motion, Blue White’s owner/operator, Yi Sook Kim, attests to the following facts. Blue White “is a California corporation formed in 2006. [the company] has operated for many years as a dry cleaning and laundry business at 7734 Greenleaf Avenue in Whittier, California.” (Motion, Kim Decl., 2.) Plaintiff’s characterization of Blue White as “an alias, dba, alternate dba, or former name of [Chura Services Inc.]” is false. (Id. at 3, 9.) “Search results from the California Secretary of State website show that at some time

between 2018 and 2021, a person named Sun Joo Kim became the sole officer, director, and agent for service of process of [Chura Services

Inc.]. To [her] understanding, those filings list an Orangethorpe Avenue address in Buena Park and identify the business as wholesale, not as Blue White's dry cleaning/laundry business." (Id. 4.) She is "not Sun Joo Kim and [she] do[es] not know anyone named Sun Joo Kim." (Id. 5.)

In opposition, Plaintiff argues that: "Because Chura and Blue White are functionally identical, sharing the exact same ownership, management, location, and business operations, the Affidavit of Identity properly identifies the asset holder." (Opposition, p. 2:6-9.) Specifically, "[b]oth Chura Services, Inc. and Blue White Cleaners & Launderers Inc. operate the exact same line of business, a laundry and dry cleaning operation, out of the identical physical storefront location: 7734 Greenleaf Ave., Whittier, CA 90602." (Id. at p. 2:16-18.) "Yisook Kim is the registered Agent for Service of Process, and previous President for Chura Services, Inc. (listing 7734 Greenleaf Ave.). Simultaneously, Yisook Kim is the registered Agent for Service of Process, Chief Executive Officer (under the name YiSook Jane Kim), and previous President for Blue White Cleaners & Launderers Inc. (listing 7734 Greenleaf Ave.)." (Id. at p. 2:20-24.) "Blue White was initially filed on January 6, 2006. However, it fell completely delinquent and corporate compliance was abandoned from 2008 until late 2019. Right as Blue White sat delinquent, Yisook Kim formed 'Chura Services, Inc.' on December 13, 2018." (Id. at p. 2:25-27.) "On February 1, 2022, Chura Services, Inc. was officially Forfeited by the state. Exactly fifteen days later, on February 16, 2022, Yisook Kim suddenly filed an updated corporate Statement of Information for the long-delinquent Blue White, installing herself as CEO and Sehwan Kim as Secretary." (Id. at p. 3:3-6.)

The Court finds Plaintiff's arguments unpersuasive for the following reasons.

"[A] person [or entity] may adopt any name in which to prosecute business, and may sue or be sued in such a name." [Citation.] (The Rossdale Group, LLC v. Walton (2017) 12 Cal.App.5th 936, 945; see also Cabrera v. McMullen (1988) 204 Cal.App.3d 1, 4 (Cabrera) ["a person may sue or be sued in any name in which he or she is known and recognized"].)

However, "[t]he designation of 'DBA' or 'doing business as' simply indicates [a corporation] operates under a fictitious business name. (See Bus. & Prof. Code, § 17900 et seq. [regulating fictitious business names].) "The designation [DBA] ... is

merely descriptive of the person or corporation who does business under some other name. Doing business under another name does not create an entity distinct from the person operating the business." [Citation.] The business name is a fiction, and so too is any implication that the business is a legal entity separate from its owner.' [Citations.]" (Pinkerton's, Inc. v. Superior Court (1996) 49 Cal.App.4th 1342, 1348.)

To invoke the DBA designation for an entity or person, there must be evidence that the person or entity has adopted that name or is known by that name. For example, in the personal injury case Cabrera, there was "no dispute that [the] plaintiff adopted 'Bonfilio' as his alias because the plaintiff admitted during his deposition that he had taken his brother Bonfilio's name as his own. (Cabrera, supra, 204 Cal.App.3d at pp. 3, 4.)

Here, there is no such evidence, and Plaintiff has not cited any law in support of its argument that the sharing of ownership, management, location, and business operations satisfies the requirements for DBA designation. As Blue White argues, Plaintiff appears to be invoking the alter ego doctrine and/or successor liability theory. (See Troyk v. Farmers Group, Inc. (2009) 171 Cal.App.4th 1305, 1341 ["Under the alter ego doctrine, ... when the corporate form is used to perpetuate a fraud, circumvent a statute, or accomplish some other wrongful or inequitable purpose, the courts will ignore the corporate entity and deem the corporation's acts to be those of the persons or organizations actually controlling the corporation, in most instances the equitable owners. [Citations.] The alter ego doctrine prevents individuals or other corporations from misusing the corporate laws by the device of a sham corporate entity formed for the purpose of committing fraud or other misdeeds. [Citation.]' [Citation]"]; CenterPoint Energy, Inc. v. Superior Court (2007) 157 Cal.App.4th 1101, 1120 ["[A] successor company has liability for a predecessor's actions if: (1) the successor expressly or impliedly agrees to assume the subject liabilities (which has never been argued here respecting the unregulated businesses), (2) the transaction amounts to a consolidation or merger of the successor and the predecessor, (3) the successor is a mere continuation of the predecessor, or (4) the transfer of assets to the successor is for the fraudulent purpose of escaping liability for the predecessor's debts"].)

For those reasons, the Court grants Blue White's motion to vacate the Affidavit of Identity pursuant to Section 473(d).

Blue White's owner testifies that \$45,368.98 has been withdrawn from the company's bank accounts pursuant to a levy from this case. (Motion, Kim Decl., 7.) Plaintiff argues that "[r]eleasing the funds would cause irreparable harm to the Judgment Creditor." (Opposition, p. 8:3-5 [bold emphasis removed].) However, Plaintiff has not cited any law in support of that argument. In addition, the Court has found that the Affidavit of Identity and Order void. As such, there is no basis for prohibiting the return of the levied funds to Blue White.

Accordingly, the Court grants the company's request for an order releasing the levied funds, prohibiting future enforcement against Blue White based on the Affidavit of Identity order, and granting Blue White reasonable attorney's fees and costs that incurred in releasing the levy from the writs of execution. Pursuant to Blue White's request, the Court reserves jurisdiction to determine those fees and costs after the levied funds have been released.

Conclusion

Non-Party BLUE WHITE CLEANERS & LAUNDERS, INC.'s "MOTION TO VACATE OR MODIFY AFFIDAVIT OF IDENTITY AND ORDER, QUASH/RECALL/MODIFY WRIT AND LEVY, ORDER RELEASE/RETURN OF FUNDS, AND AWARD FEES AND COSTS" is GRANTED. The Affidavit of Identity and Order entered on September 16, 2022, is hereby vacated as void. The Court orders all funds levied pursuant to that order released. The Court grants the request for attorney's fees and costs, but the moving party must file a properly noticed motion to seek those fees and costs.